

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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JOSEPH MONZON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER MATTHEW SGAMBATI (SHIELD # 3341),
NEW YORK CITY POLICE OFFICER BRIAN GRECO
(SHIELD # 27356), NEW YORK CITY POLICE OFFICER
JOHN DOE #1, and POLICE OFFICERS JOHN DOES #2-4
(names and numbers of who is unknown at present), and
present), and other unidentified members of the New York
City Police Department.

Defendants.
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SUMMONS

Index #

The basis of venue is:
New York County

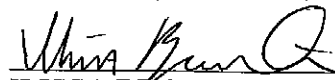
Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 8, 2015

Respectfully submitted,



ILISSA BROWNSTEIN, ESQ.

Attorney for Plaintiff

65 Broadway, 7th Floor

New York, New York 10006

(212) 691-3333

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, NY 10007

POLICE OFFICER MATTHEW SGAMBATI (Shield # 3341)
Manhattan Gang Unit

POLICE OFFICER BRIAN GRECO (Shield # 27356)
Manhattan Gang Unit

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X
JOSEPH MONZON,

VERIFIED COMPLAINT

Plaintiff,

Index #

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER MATTHEW SGAMBATI (SHIELD # 3341),
NEW YORK CITY POLICE OFFICER BRIAN GRECO
(SHIELD # 27356), NEW YORK CITY POLICE OFFICER
JOHN DOE #1, and POLICE OFFICERS JOHN DOES #2-4
(names and numbers of who is unknown at present), and
present), and other unidentified members of the New York
City Police Department.,

Defendants.
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Plaintiff **Joseph Monzon**, by his attorney, ILISSA BROWNSTEIN, ESQ., as and for the
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution of plaintiff. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Plaintiff Joseph Monzon is a citizen of the United States and a resident of New York, New York.
3. Police Officer Matthew Sgambati (Shield # 3341), is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. Police Officer Matthew Sgambati (Shield # 3341) is being sued in his individual capacity and official capacity.

5. Police Officer Brian Greco (Shield # 27356) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Police Officer Brian Greco (Shield # 27356) is being sued in his individual capacity and official capacity.
7. Police Officer John Doe #1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
9. New York City Police Officers John Does #2-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
10. New York City Police Officers John Does #2-4 are being sued in their individual capacities and official capacities.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
13. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
15. The City of New York held a 50(H) hearing examination of the Plaintiff on November 13, 2014.

STATEMENT OF FACTS

16. Joseph Monzon is 26 years old.
17. He is currently employed at Construction Staffing Solutions and began employment in March of 2013.
18. Monzon has received 36 college credits.
19. On August 14, 2014, at 7:00 p.m., Monzon was a passenger in a Hyundai vehicle.
20. David Vega was the driver and owner of the vehicle.
21. Vega and Monzon were driving on their way to Vega's house.
22. Vega was pulled over by police officers at a red light on the corner of W. 135th Street and Riverside Drive in New York, New York.
23. The officers asked for both Monzon's and Vega's IDs in which they both provided.
24. One officer started asking Monzon questions about his brother Jason, regarding his brother's whereabouts.
25. Monzon was not able to provide any information about his brother because he hasn't seen him in over a year.
26. The officers asked Vega and Monzon to step out of the car. They both complied.
27. The officers started to search the vehicle, but did not recover anything.
28. The officers arrested Monzon and continued to ask him questions about his brother at the precinct.
29. Monzon was charged with possession of one rock of Molly, but Monzon denies any possession of it.
30. Bail was set in the amount of \$2,500.
31. Monzon made bail on August 16, 2014, after spending three days in jail.
32. Monzon attended 2 court appearances and on August 20, 2014, the case was dismissed and sealed on motion of the prosecutor because they could not prove the case beyond a reasonable doubt.
33. Monzon lost income from his job for the 4 days that he missed on account of his incarceration and subsequent court appearance.
34. Plaintiff filed a notice of claim on 08/23/14.

FIRST CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT AND FOURTEENTH AMENDMENT RIGHTS

35. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.
36. The individually named defendants who were acting in concert and within the scope of their authority at the NYPD arrested and caused plaintiff to be imprisoned without probable cause, maliciously prosecuted, and subjected to excessive force as well as an unlawful abusive search in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty and the right to privacy under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

37. Plaintiff repeats and alleges paragraphs 1 through 36 as if fully set forth herein.
38. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
39. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
40. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

MALICIOUS PROSECUTION

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.
42. The acts and conduct of the defendants constitute malicious prosecution under the Fourth Amendment to the United States Constitution.

43. Defendants commenced and continued a criminal proceeding against plaintiff.
44. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
45. The prosecution and criminal proceedings terminated favorably to plaintiff on August 20, 2014.
46. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.
47. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

INVASION OF PRIVACY

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.
49. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously subjected plaintiff to an illegal and sexually abusive search, and in doing so violated plaintiff's right to privacy.
50. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the NYPD which are therefore responsible for their conduct.
51. The City, as the employer of Defendant is responsible for the wrongdoing under the doctrine of respondeat behavior.

FIFTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SIXTH CAUSE OF ACTION

FAILURE TO INTERVENE

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.
55. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
56. Defendants failed to intervene to prevent the unlawful conduct described herein.
57. As a result of the foregoing, plaintiff was subjected to an illegal stop and search.
58. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
59. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

NEGLIGENCE

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.
61. Defendants owed a duty of care to plaintiff.
62. Defendants breached that duty of care by assaulting plaintiff and subjecting him to an illegal stop and search.
63. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
64. All of the foregoing occurred without any fault by plaintiff.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.
67. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.
68. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
69. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

NINTH CAUSE OF ACTION

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.
71. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
72. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions.
73. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of

defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

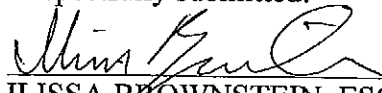
74. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
75. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested and prosecuted.
76. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE, JOSEPH MONZON, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
February 8, 2015

Respectfully submitted:

By:


ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
65 Broadway (7th Floor)
New York, New York 10007
(212) 691-3333

TO: CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, New York 10007

POLICE OFFICER MATTHEW SGAMBATI (Shield # 3341)
Manhattan Gang Unit

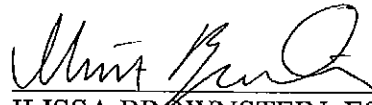
POLICE OFFICER BRIAN GRECO (Shield # 27356)
Manhattan Gang Unit

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are started to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county where in I maintain my office.

DATED: New York, New York
February 8, 2015



ILISSA BROWNSTEIN, ESQ.